

25NWCV01706 25NWCV01706

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-06-25

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Case Number: 25NWCV01706 Hearing Date: June 25, 2026 Dept: R

#15

CARDENAS v. VAUGHN

CASE

NO.: 25NWCV01706

HEARING:

Thursday, June 25, 2026, at 9:30 AM

I.

Plaintiff LUIS CARDENAS' Motion to Compel Defendant

KIM VAUGHN's Response to Production of Documents, Set One is GRANTED.

II.

Plaintiff LUIS CARDENAS' Motion to Compel Defendant

KIM VAUGHN's Response to Special Interrogatories, Set One is GRANTED.

III.

Plaintiff LUIS CARDENAS' Motion to Compel Defendant

KIM VAUGHN's Response to Form Interrogatories, Set One is GRANTED.

IV.

Plaintiff LUIS CARDENAS' Motion Deem Requests for

Admission, Set One Admitted against Defendant KIM VAUGHN is GRANTED.

Moving

Party to give Notice.

Background

Plaintiff

LUIS CARDENAS ("Plaintiff")

moves to: Compel Defendant

KIM VAUGHN's ("Defendant")

Response to (1) Production of Documents, Set One; (2) Special Interrogatories, Set One and (3) Form Interrogatories, Set One. Plaintiff also moves to Deem Requests for Admissions Set One Admitted against Defendant.

Legal

Standard

"If a party

to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, the following rules shall apply: (a)

The party to whom the demand... is directed waives any objection to the demand, including one based on privilege or on the protection for work product.... The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: (1) The party has subsequently served a response that is in substantial compliance.... (2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect." (CCP §2031.300.)

"If a party

to whom interrogatories are directed fails to serve a timely response, the following rules apply: (a) The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product.... The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: (1) The party has subsequently served a response that is in substantial compliance.... (2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect." (CCP §2030.290.)

If a party

to whom interrogatories and document demands are directed fails to respond at all, the propounding party's remedy is to seek a court order compelling answers thereto. (CCP §§ 2030.290, 2031.300.) All that needs to be shown is that the discovery was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. The moving party is not required to show a reasonable and good faith attempt to resolve the matter informally before filing this motion. A motion to compel initial discovery responses need not show good cause, meeting and conferring, or timely filing, and need not be accompanied by a separate statement. (See *Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404.)

On December 17, 2025, Plaintiff propounded onto Defendant Form Interrogatories, Set One; Special Interrogatories, Set One; Production of Documents, Set One; and Requests for Admissions, Set One. Defendant's responses were due by January 21, 2026. On February 3, 2026, Plaintiff served a meet and confer letter requesting Defendant's responses by February 20, 2026.

Defendant failed to provide a response.

Therefore, Plaintiff's Motions are GRANTED, and Defendant KIM VAUGHN is ORDERED to provide verified responses and documents, without objection by no later than 30 days from date of the Court's issuance of this Order. Plaintiff's Requests for Admissions Set One are Deemed Admitted.

This date may be extended by stipulation of the parties. If any objections are asserted, it will be tantamount to no response at all and will be deemed a violation of this Court's order.

Reasonable sanctions are GRANTED in the total amount of \$600.00. Defendant KIM VAUGHN is ORDERED to pay Moving Party and their counsel of record sanctions in the total amount of \$600.00, payable within 60 days from the date of the Court's issuance of this Order.